

SC126806 SC126806

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-06-26

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CI%2C06%2F26%2F2026

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Case Number: SC126806 Hearing Date: June 26, 2026 Dept: I

This is a motion to compel Jane Doe's deposition. The waters became muddy due to some conduct by Doe ("Doe" refers to Jane Doe only unless otherwise stated). There is a trial set in this case for early October, which is soon, but not in the context of a case that is over a decade old. However, very recently, Doe dismissed her claims against almost all of the other parties. What remains of all the cases but one are fairly discrete claims by May Doe and claims by a trust that purports to own a unit in the condominium development.

There are also various other claims and cross complaints, but all of them relate to ownership of that unit.

When the court saw that, the court had assumed that, for whatever reasons, Doe had elected not to go forward with the litigation as to the various torts she had alleged and pursued for so long. But at the hearing two days ago, the court was informed that its understanding was wrong.

In fact, one case had been stayed.

The reason it had been stayed was that it was duplicative of the main case—SC126806—and therefore added nothing.

In hindsight, the court would have been better off just consolidating the two. But in either event, it was stayed, and Doe did not dismiss her claims in that case. Accordingly, as the court learned, this was something of self-help by Doe. By dismissing her claims in the case that was set for trial, she believed she had bought a unilateral extension of that case until some later point. She asserts that she was not trying to play games, but rather that for health issues—her own and her mother's—she simply could not focus on the case at present.

At Wednesday's hearing, the court was surprised by this. The right way to have done this would have been by way of a motion to bifurcate the case or to continue the

trial. That would have allowed all parties to be heard and the court to have fashioned some remedy that made sense for all concerned. The court does not want to jeopardize Doe's health. But at the same time, defendants have rights as well. They have been fighting this case for over a decade and state that they want their day in court to clear their name. True, some of the reason for the two cases (and the delay) is that the Legislature enacted various revival laws that revived what would otherwise have been time-barred claims. Rather than assert that the original case was now revived, Doe elected to file a new case, thereby complicating an already too complex procedural quagmire. In any event, the self-help aspect has thrown this case into even more disarray. To be clear, the court is not faulting Doe for filing the 2024 case; it is faulting her for engaging in self-help, thereby making an already difficult situation worse.

At issue here is defendant's motion to compel plaintiff's deposition. There is no doubt but that the deposition is essential—especially if Doe's tort claims against Olson and others are alive and kicking. When the deposition notice was served (which was March 2, 2026), Doe said that the proposed date was not good because she was ill but that she would provide an alternative date. However, as time passed, no date was provided. So a new notice was sent out. Doe said that her attorney (presumably for purposes of the deposition only, as she is generally self-represented) was not available on that date. She also stated that she believed that the depositions she had earlier noticed should be finished first. The defense disagreed, especially because the case in which Doe had noticed depositions did not really implicate many of the issues raised in her case. Plaintiff still did not provide a deposition date. The court notes that one issue had been the lack of an agreed upon confidentiality order, but that has since been resolved. That led to the instant motion to compel. Plaintiff, presumably thinking that the motion would go off calendar due to her dismissal of the claims in SC126806, did not oppose the motion, although she claims to want to oppose it.

The court is inclined to hear the motion, and to GRANT it. Plaintiff elected to engage in

self-help rather than do this in an orderly fashion in which all parties could be heard. That was her choice, but it was an unfortunate one and she must bear the consequences of it. This case has been pending for a long, long time. It is plain to the court that plaintiff needs to be deposed. She is the principal witness on her side for most of the events of which she complains. The trial is in four months. There is no basis at this time to delay further. The protective order is in place; plaintiff can designate portions of the transcript as confidential or highly confidential as is appropriate.

The court will also say that to the extent that one of plaintiff's concerns is the distress of having some of those she claims engaged in tortious conduct in the room, the court would agree and require that those individuals ought to attend remotely in such a way that they cannot be seen nor heard by plaintiff, nor heard by the court reporter.

(They can, of course, communicate with their counsel.) They should be able to see plaintiff, however. To pick the date, the court will order as follows. No later than

Thursday, July 2, 2026, at noon, plaintiff (or her deposition counsel) will email Olson's counsel with five dates all of which are no earlier than July 13, 2026, nor later than August 10, 2026.

They will be weekdays. No later than Monday, July 6, 2026, at noon, Olson's counsel will email plaintiff choosing one of the five dates provided.

On the designated day, the deposition will begin at 9:30 am and conclude at 5:00 pm. There will be a one hour

lunch break and one 15 minute break in the morning and another in the afternoon. If the deposition does not

conclude, it will continue from day to day until concluded, weekends and holidays excepted. The foregoing is not

meant to be a judicial order that the presumptive time limit may be exceeded, but neither is the court ruling that circumstances would not justify exceeding it. This will be the one and only

deposition of Doe in the entire constellation of cases, so defense counsel (and plaintiffs' counsel, for that matter) ought to coordinate. The foregoing procedure may be changed without leave of court based on any written agreement by all parties.

The request for sanctions is DENIED.

If plaintiff wants to seek reconsideration of this order

based on medical evidence—meaning from a treating physician under oath and with sufficient detail to be something that the opposition and the court can evaluate meaningfully—she is given leave to do so.

The court also has an ex parte application by Olson to advance the hearing date on his motion for summary judgment against May Doe. The motion was filed on June 11, 2026. That is a timely filed motion in the sense that it gives May Doe the full 81 days of notice and could have been set more than 30 days before the trial, although not by much. The earliest hearing date that would comply with the statute would be September 3, which is 32 days before the trial. Even so, it was timely and the court is duty-bound to hear it. The question in the court's mind is what is it that is going to be tried on October 5? Right now, it is not clear that Jane Doe's case is what will be tried. That leaves the property issue and May Doe's case. In either situation, though, the court is inclined to DENY the application but to exercise its discretion to hear the motion less than 30 days before trial. While the court cannot reduce the statutory notice period, it can elect to hear the motion less than 30 days before the trial. The court notes that this solution addresses the points raised in May Doe's opposition papers.